



CHAPTER xli.

An Act to enable the Gas Light and Coke Company to raise additional moneys and to purchase take and hold lands and for altering the standard price of gas and redeeming capital and for other purposes.

A.D. 1903.

[30th June 1903.]

WHEREAS the Gas Light and Coke Company (hereinafter called “the Company”) was originally incorporated by Royal charter dated the thirtieth day of April one thousand eight hundred and twelve under the authority of 50 George III. cap. 163 (Local and Personal) and received further powers under divers subsequent Acts being finally incorporated in perpetuity by 59 George III. cap. 20 (Local):

And whereas by the Gas Light and Coke Company's Act 1868 all the prior Acts of the Company were repealed and the Company was continued and the provisions of all such prior Acts were consolidated:

And whereas the Company is subject to the Gas Light and Coke Company's Acts 1868 to 1898:

And whereas by the Gas Light and Coke Company's (Capital Consolidation) Act 1898 (hereinafter called “the 1898 Act”) the Company's debenture stocks were consolidated and converted into one stock to be called “Three per centum consolidated debenture stock”:

And whereas it is expedient that the Company should have a further power to create and issue and to raise money by the creation and issue of seven hundred and fifty thousand pounds debenture stock:

And whereas the Company is willing to alter its standard price in manner hereinafter set forth:

[Price 9d.]

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— And whereas it is expedient that provision be made for enabling the Company to carry into effect the said alteration :

And whereas by reason of the closing of several of the Company's stations the Company has obsolete capital and it is desirable to provide for the redemption thereof :

And whereas the Company has from time to time partly purchased and partly acquired by exchange the lands and hereditaments described in the Schedule to this Act Parts I. and II. which said lands and hereditaments have been conveyed under or by means of the indentures of conveyance described in the Schedule to this Act Part III. to the Company or to the grantees under the said conveyances as indicated in the Schedule and such grantees thereupon executed declarations of trust whereby they declared that they respectively held the said lands and hereditaments respectively in trust for the Company its successors and assigns :

And whereas doubts have been or may be suggested as to the power of the Company to take and hold the said lands and hereditaments or some of them and it is expedient to set such doubts at rest and to enable the Company to take a conveyance of and hold the said lands and hereditaments :

And whereas the said trustees are ready and willing to convey the same to the Company :

And whereas it is expedient to authorise the Company to purchase by agreement further lands for the purposes of their undertaking and the use thereof as hereinafter in this Act provided and that the Company should have the further powers hereinafter conferred and that the further provisions hereinafter contained should be made :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Gas Light and Coke Company's Act 1903.

Incorporation of general Acts.

2. There shall be incorporated with and form part of this Act—

(A) The Lands Clauses Acts except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement :

(B) The Companies Clauses Act 1863 Part III. (except sections 32 34 and 35 thereof): A.D. 1903. ---

(c) The Companies Clauses Act 1869 (except sections 5 6 7 and 8 thereof).

The said incorporated provisions of the last-named two Acts shall be applicable and apply as though this Act authorised the money which the Company is by this Act empowered to raise by the creation and issue of debenture stock to be raised on mortgage or bond.

3. Words defined in the Acts incorporated with this Act shall have the same meaning in this Act and words defined in the Gas Light and Coke Company's (Capital Consolidation) Act 1898 shall have the same meaning in this Act. Definitions.

4. The Company is hereby authorised to create and issue debenture stock not exceeding the nominal amount of seven hundred and fifty thousand pounds. Creation and issue of debenture stock.

5.—(A) Whenever any debenture stock is to be issued under this Act and before the same is issued the Company shall offer the same for sale by public auction or tender in such manner at such times and subject to such conditions and terms of sale as the Company shall from time to time determine. Debenture stock to be offered by auction or tender.

(B) The Company shall at any such sale put such a reserved price upon the stock offered for sale as in the judgment of the Company ought to be the least price which the stock should realise at such sale and at which the Company is willing to sell the same and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders (as the case may be) and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner.

(c) The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of the city of London to the clerk of the London County Council and to the Secretary of the Committee of the London Stock Exchange at least ten days before the day of auction or the last day for the reception of tenders (as the case may be) and notice of such intention shall be publicly advertised three times during the same period in two or more London daily newspapers having a good circulation of which the Times shall be one.

(D) Any sum of money which shall arise from the sale and issue of the said stock by way of premium after deduction therefrom

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(E) No stock shall be sold or issued otherwise than to a purchaser at such a sale by auction or by tender as aforesaid but the Company may sell any stock unsold at any one such sale by auction or tender at any subsequent sale or sales by auction or tender conducted under the conditions aforesaid and at a price either equal to or above the reserved price fixed in the manner aforesaid for such subsequent sale.

(F) Holders of the Company's capital or debenture stock shall not as such be entitled to any preference or priority as regards tendering for or purchasing any stock by this Act authorised.

Application
of moneys.

6. All moneys to arise from the sale and issue of debenture stock authorised by this Act shall be applied by the Company for the purposes of its undertaking to which capital is properly applicable.

Second de-
benture stock
to rank next
after existing
three per cen-
tum consoli-
dated debent-
ure stock.

7.—(1) The debenture stock authorised by this Act to be created and issued shall be known as the second three per centum debenture stock and shall bear interest at the rate of three per centum per annum and shall rank next after the Company's three per centum consolidated debenture stock both as regards capital and as regards interest.

(2) All debenture stock created or authorised by or issued under this Act or any Act hereafter made and passed and the interest on such debenture stock shall (subject to the provisions of any Act hereafter made and passed) rank *pari passu* (without any regard to the dates of the securities for the same or of the Acts of Parliament or resolutions by which such stock is authorised) and have priority over all principal moneys and the interest thereon secured by mortgage bond or debenture hereafter made entered into or authorised.

Alteration
of standard
price and
sliding scale
as to divi-
dend.

8. On and after the first day of January one thousand nine hundred and four the standard price of the Company's gas shall be three shillings and fourpence per thousand cubic feet in lieu of three shillings and ninepence per thousand cubic feet.

On and after the said date any reference in any Act to the standard price of the Company's gas shall be deemed to be a reference to the standard price fixed by this Act as aforesaid and every Act relating or referring to the Company shall be construed and applied accordingly.

For every penny or part of a penny by which the authorised price in any calendar year exceeds or is less than the standard

price the standard rate of dividend shall for such year be reduced or increased by two shillings and eightpence in order to arrive at the authorised rate of dividend and this scale shall be substituted for the scale in section 15 of the Gas Light and Coke Company's (Capital Consolidation) Act 1898.

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In section 16 of the Gas Light and Coke Company's (Capital Consolidation) Act 1898 there shall be substituted on and after the said date for the words "four shillings and ninepence" (where-soever they occur in that section) the words "four shillings and one penny" and for the words "two shillings" the words "two shillings and eightpence" and for the words "two shillings and sixpence" the words "three shillings and fourpence."

9.—(1) Before the Company shall be entitled to or shall in respect of any calendar year after the calendar year one thousand nine hundred and three distribute— Redemption fund.

- (A) An increased dividend in excess of the standard dividend the Company shall out of the divisible profits in excess of the amount needed to provide the standard dividend for the year and before distributing any increased dividend set aside a sum up to and not exceeding ten thousand pounds and after setting aside the said sum of ten thousand pounds may distribute by way of addition to the standard dividend an increased dividend up to six shillings and eightpence per centum ; or
- (B) An increased dividend in excess of four pounds six shillings and eightpence per centum the Company shall out of the divisible profits aforesaid and before distributing any dividend in excess of the last-named sum per centum set aside a sum up to and not exceeding twenty thousand pounds and after setting aside the said sum of twenty thousand pounds may distribute by way of addition to the standard dividend an increased dividend up to thirteen shillings and fourpence per centum ; or
- (C) An increased dividend in excess of four pounds thirteen shillings and fourpence per centum the Company shall out of the divisible profits aforesaid and before distributing any dividend in excess of the last-named sum per centum set aside a sum up to and not exceeding thirty thousand pounds and after setting aside the said sum of thirty thousand pounds may distribute by way of addition to the standard dividend an increased dividend up to one pound per centum ; or

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(D) An increased dividend in excess of five pounds per centum the Company shall out of the divisible profits aforesaid and before distributing any dividend in excess of the last-named sum per centum set aside a sum up to and not exceeding forty thousand pounds:

And the several sums so from time to time set aside as aforesaid shall be and form a redemption fund:

Provided always that nothing in this section shall authorise the Company at any time to distribute any dividend in excess of the authorised dividend and that for the purpose only of calculating the amount distributed in accordance with this proviso the amount set aside as redemption fund shall be assumed to have been distributed by way of dividend.

(2) "Divisible profits" in this section mean the whole amount of the Company's clear profits (inclusive of profits carried to the credit of divisible profits from any preceding year) available for distribution in dividends to the Company's capital stockholders in respect of any calendar year.

(3) The Company shall not in respect of any one calendar year distribute to the holders of ordinary stock of the Company dividends to an amount exceeding four pounds per centum upon the total nominal amount of such ordinary stock for the time being continuing to subsist without making such provision for the redemption of ordinary stock as is by this Act provided for.

(4) Subject as aforesaid the Company may apply the divisible profits in any manner in which but for this Act they can for the time being apply the same.

(5) The Company shall apply the said redemption fund during the year following that in respect of which it is set aside in purchasing in the open market ordinary stock of the Company which stock is upon the completion of every purchase thereof to be cancelled and shall thenceforth be and be taken to be extinguished.

(6) This section shall not come into operation before the year one thousand nine hundred and four nor in regard to the dividends distributed in respect of the year one thousand nine hundred and three.

(7) In order that the price of the Company's gas may be kept down as much as the profits admit of it shall not be obligatory on the Company to set aside during the continuance of this section out of revenue any sums for the purpose of or with regard to the extinction redemption or writing off of obsolete capital.

(8) This section shall cease to operate when the Company have by means of the redemption fund aforesaid purchased and extinguished ordinary stock of the Company to the nominal amount of one million pounds and a certificate under the hand of the President of the Board of Trade for the time being shall be conclusive evidence of the total amount of the Company's ordinary stock from time to time purchased and extinguished by means of the said redemption fund. A.D. 1903.
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10. The costs charges and expenses of the London County Council preliminary to and of and incidental to the Bill introduced by them in the present session of Parliament under the title of "Gas Light and Coke Company's Acts Amendment" shall be defrayed by the London County Council as payments for general county purposes within the meaning of the Local Government Act 1888. Payment of certain costs by London County Council.

11. The reserve fund of the Company shall not be used for the purpose of distributing in any year to the Company's ordinary stockholders a dividend upon their stock in excess of four per centum. Use of reserve fund.

12. The Company shall be deemed to have been at all times entitled to acquire and (when acquired) to take and hold the lands and hereditaments in Parts I. and II. of the Schedule to this Act referred to and the Company shall be entitled to take and hold such lands and hereditaments accordingly and the trustees of such lands and hereditaments referred to in Part III. of the said Schedule (whenever such lands or any interests therein are vested in trustees) are hereby enabled and entitled to convey and when required by the Company shall convey all their estate and interest in the same to the Company or as it may direct. Power to Company to hold lands.

13.—(1) The Company may use the lands and hereditaments referred to in Part I. of the Schedule to this Act for making maintaining altering or discontinuing or for continuing to make or maintain thereon gasworks buildings retorts gasometers receivers cisterns engines machinery and apparatus and may thereon make and store gas and make coke and manufacture and deal with products refuse and residuals remaining or obtained from making gas or coke and from materials used in or produced by the making of gas or coke or manufacturing or dealing with the said products refuse or residuals and may construct erect maintain and provide on the said lands and hereditaments such works buildings machinery apparatus and materials as the Company deems requisite for the aforesaid purposes or any of them. Powers as to construction and maintenance of gasworks user of lands &c.

A.D. 1903. — (2) The Company may use the lands and hereditaments referred to in Part II. of the Schedule to this Act for the purposes or any of the purposes of its works and undertaking other than for manufacturing gas or any residual product or for storing gas.

Additional
lands by
agreement.

14. The Company may for the purposes of its undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the Schedule to this Act any lands and hereditaments not exceeding in the whole one hundred and fifty acres which the Company may require for the purposes of its works and undertaking but no part of such additional lands shall be used by the Company for manufacturing gas or any residual product.

Restriction
on taking
houses of
labouring
class.

15. The Company shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Company acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section—

The expression “labouring class” means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them ;

The expression “house” means any tenement separately occupied by any person or persons.

Costs of Act.

16. All costs charges and expenses preliminary to and of and incidental to the preparing of applying for obtaining and passing of this Act shall be paid by the Company out of its revenue.

The SCHEDULE referred to in the foregoing Act.

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PART I.

All those pieces or parcels of land situate in the parish of East Ham in the county of Essex containing thirty-six acres or thereabouts which said lands are shown and identified by the Nos. 94 (part of) 95 (part of) 96 97 (part of) 98 (part of) 100 (part of) 101 (part of) 101A (part of) 127 128 and 129 (part of) on sheet 67 of the Ordnance map (Edition 1894-1896 scale $\frac{1}{25000}$ or 25·344 inches to the mile) and are also shown and identified by the Nos. 347B 348 (part of) 362 (part of) 363 364 365 366 (part of) 367 (part of) 373 (part of) and 412 (part of) on the map annexed to the apportionment of rentcharge in lieu of tithes for the parish of East Ham aforesaid and which said lands are bounded on the north by the Northern Outfall Sewer belonging to the London County Council on the east by lands belonging or reputed to belong to the Company on the south by the Beckton Road and on the west by the East Ham Manor Way as it now exists between the said Beckton Road and the said Northern Outfall Sewer.

PART II.

First All those pieces or parcels of land situate in the parish of East Ham in the county of Essex containing forty-nine acres or thereabouts as the same are now or were lately in the occupation of Mark Gibbard which said lands are shown and identified by the Nos. 98 (part of) 100 (part of) 105 107 and 108 (part of) on the Ordnance map mentioned in Part I. of this Schedule and are also shown and identified by the Nos. 348 (part of) 349 (part of) 350 351 and 362 (part of) on the tithe map mentioned in Part I. of this Schedule and which said lands are bounded on the north as to part by the back gardens belonging to the houses in Roman Road and as to part by the lands identified by the Nos. 106 and 109 on the said Ordnance map on the east by the said East Ham Manor Way as it now exists between the said Beckton Road and the said Northern Outfall Sewer on the south as to part by the accommodation road formerly known as Alder Tree Lane and identified by the No. 101A on the said Ordnance map and as to part by the lands identified by the Nos. 99 and 103 on the said Ordnance map and on the west by the lands identified by the Nos. 99 106 118 and 119 on the said Ordnance map.

Secondly All that piece or parcel of land situate in the parish of East Ham in the county of Essex containing thirty-two acres and sixteen perches or thereabouts as the same is now in the occupation of Charles Northfield and Joseph Edwards which said land is shown and identified by the No. 147 (part of) on the said Ordnance map and by the No. 388 on the said tithe

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A.D. 1903. — map and which said land is bounded on the north by the land identified by the Nos. 131 and 132 on the said Ordnance map on the east by the land identified by the Nos. 150 147 (part of) and 151 on the said Ordnance map on the south by the land identified by the Nos. 148 and 149 on the said Ordnance map and on the west by the said East Ham Manor Way identified by the No. 157 on the said Ordnance map.

Thirdly All that piece or parcel of land situate in the parish of East Ham in the county of Essex containing six acres or thereabouts as the same is now in the occupation of George Beddall which said land is shown and identified by the No. 99 on the said Ordnance map and by the No. 361 on the said tithe map and which said land is bounded on the north by the land identified by the Nos. 98 and 108 (part of) on the said Ordnance map on the east by the land identified by the No. 100 on the said Ordnance map on the south by Alder Tree Lane aforesaid and on the west by the land identified by the No. 103 on the said Ordnance map.

PART III.

No.	Date.	Parties.	Conveyees.
1	16 February 1900 -	William Henry Savage of the one part and the Gas Light and Coke Company of the other part.	The Company.
			TRUSTEES.
2	27 May 1881 -	Edward Raphael of the one part and William Thomas Makins and John Orwell Phillips (since deceased) of the other part.	William Thomas Makins.
3	15 February 1882 -	The Right Honourable Edward Bootle Earl of Lathom and James Van Sommer of the first part John Ynyr Burges and Ynyr Henry Burges of the second part and the said William Thomas Makins and John Orwell Phillips (since deceased) of the third part.	Do.
4	9 September 1882	The Reverend Samuel Harvey Reynolds of the first part the Ecclesiastical Commissioners for England of the second part the Principal and Scholars of the King's Hall and College of Brasenose of the third part and the said William Thomas Makins and John Orwell Phillips (since deceased) of the fourth part.	Do.
5	10 July 1883 -	Elizabeth Drew of the one part and the said William Thomas Makins and John Orwell Phillips (since deceased) of the other part.	Do.
6	11 August 1885 -	Charles Mortimer and Samuel Timbrell Fisher of the one part and the said William Thomas Makins and John Orwell Phillips (since deceased) of the other part.	Do.

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No.	Date.	Parties.	Conveyees.
7	7 November 1885 -	Thomas Matthews of the one part and the said William Thomas Makins and John Orwell Phillips (since deceased) of the other part.	William Thomas Makins.
8	21 December 1885	The Right Honourable Edward Bootle Earl of Lathom and James Van Sommer of the first part John Ynyr Burges and Ynyr Henry Burges of the second part and the said William Thomas Makins and John Orwell Phillips (since deceased) of the third part.	Do.
9	25 October 1888 -	Mary Elizabeth Bartlett and Wickham Flower of the one part and the said William Thomas Makins and John Orwell Phillips (since deceased) of the other part.	Do.
10	28 April 1899 -	William Henry Savage of the one part and the said William Thomas Makins and John William Field of the other part.	William Thomas Makins and John William Field.

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